

and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion..” (CCP §2016.040.) It is clear from the meet and confer declaration that the parties did not meet and confer in person, by phone or videoconference.

The hearing on the motion to compel further responses to Requests for Production is continued to 10.27.26. The parties are ordered to ***meet and confer via in person, phone or video conference*** for the purpose of determining whether an agreement can be reached that would resolve the requests at issue in this motion. After meeting and conferring, the parties shall 10 days before the continued hearing date set above do one of the following:

- (1) Plaintiff vacate the hearing on the motion;
- (2) Parties file with the court a joint declaration stating the means by which the parties met and conferred and what issues, if any, the parties were able to resolve and what issues remain for the court’s ruling.

Whether or not the parties engaged in a reasonable and good faith meet and confer process will be considered by the court in ruling on the request for sanctions.

The court will not accept further briefing.

Additionally, Plaintiff has failed to submit proofs of service of his discovery motions. No proof of service was filed with the court indicating that Defendants had been served with either the motions or the Reply. Plaintiff is directed to submit proofs of service moving forward or potentially have a hearing vacated or a brief disregarded by the court for failure to show notice was given to opposing counsel.

Parties are also informed that no further discovery motions shall be permitted without request for an Informal Discovery Conference. Based on the history of this case, the court is requiring that a party seeking to address discovery issues must first submit a request with the court for an IDC. Information about that procedure is located on this department’s website.

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CASE #	CASE NAME	HEARING NAME
CVPS2600012	PEARCE VS ELLENZ	MOTION FOR TO COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION, SET TWO AS TO DEFENDANT CALIFORNIA WINDOW & DOOR, INC.

Tentative Ruling: No tentative ruling. Hearing is continued.